

26STCV06748 26STCV06748

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Case Number: 26STCV06748 Hearing Date: July 14, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RICHARD NIVER,

Plaintiff,

vs.

KNIGHT SUNRISE HOLLYWOOD LLC, et al.,

Defendants.

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CASE NO.: 26STCV06748

[TENTATIVE] ORDER GRANTING MOTION FOR TRIAL
PREFERENCE

Dept. 506

8:30 a.m.

July 14, 2026

On February 22, 2022, Plaintiff
Richard Niver filed this action against Defendants Knight Sunrise Hollywood LLC,
Jimmy Ochoa, and US OPCO NOHO F Inc.

On
June 2, 2026, Plaintiff filed a motion for trial preference. Defendants' evidentiary objections are overruled.

A
party who is over 70 years old may petition the court for a preference, which the
court shall grant if the court makes both of the following findings: (1) the party
has a substantial interest in the action as a whole; and (2) the health of the party
is such that a preference is necessary to prevent prejudicing the party's interest
in the litigation. (Code Civ. Proc., § 36,
subd. (a).) An affidavit submitted in support
of a motion for preference under subdivision (a) of Section 36 may be signed by
the attorney for the party seeking preference based upon information and belief
as to the medical diagnosis and prognosis of any party. (Code Civ. Proc., § 36.5.) "The issue under subdivision
(a) is not whether an elderly litigant might die before trial or become so disabled
that she might as well be absent when trial is called. Provided there is evidence that the party involved

is over 70, all subdivision (a) requires is a showing that the party's "health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation. (*Italics added.*)" (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534 (Fox).) "Subdivision (a) requires the granting of calendar preference to 'prevent' prejudice to a stricken litigant's interests. (*Italics added.*) The idea that [plaintiff] should be made to wait to file a preference motion until she is clearly in her final days—when attendance at a trial is hardly what she should be doing—makes no sense at all." (*Id.* at p. 536.)

"Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved." (Fox, *supra*, 21 Cal.App.5th at p. 535.) Any inconvenience to the court or to other litigants is irrelevant and "[f]ailure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference." (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085 (Swaithes).)

Plaintiff

is 77 years old. (Niver Decl. ¶ 2.) Plaintiff suffered a stroke and was hospitalized from November 2-5, 2025, while still employed by Defendants. (Niver Decl. ¶ 5; see Niver Decl. ¶ 8.) Since then, Plaintiff "ha[s] been treated for and continue[s] to live with serious medical conditions, including the right internal carotid artery occlusion and carotid stenosis." (Niver Decl. ¶ 6.) He has "persistent weakness on the left side of [his] body" and "difficulty with [his] memory, concentration, and processing things." (Niver Decl. ¶ 7.) Plaintiff "often struggle[s] to find the right words," "tire[s] easily and become[s] fatigued," "ha[s] difficulty reliably using [his] cell phone," "need[s] to take breaks," and is "most reliable and clearheaded in the morning." (Niver Decl. ¶ 7.) Plaintiff is "frightened that [he] will suffer another stroke." (Niver Decl. ¶ 9.) He is concerned that a delay in the trial "creates a real risk that [his] health and ability to think clearly will decline to the point that [he] cannot effectively remember the events of [his] case, testify at trial, sit for a deposition, assist [his] attorney, or get through lengthy court proceedings." (Niver Decl. ¶ 10.)

Plaintiff's

counsel also declares that, based on Plaintiff's medical records and clinical notes, Plaintiff's "prognosis includes a substantially elevated risk of recurrent stroke and of cognitive and functional decline." (Bearman Decl. ¶ 7; see Bearman Decl., Exs. A-C.)

Defendants

contend Plaintiff has not met his burden of proving a medical condition that makes trial preference necessary. Section 36, subdivision

(a) requires a determination that Plaintiff's health is in such condition that a preference is necessary to prevent prejudicing the party's interest in the litigation, not that there is some serious medical condition. Plaintiff's and counsel's declarations are sufficient to prove Plaintiff's medical diagnosis and prognosis. (Code Civ. Proc., § 36.5.) Additionally, the motion is accompanied by Plaintiff's medical records.

Defendants

also argue that they will be prejudiced by granting trial preference, and they "respectfully request that any order granting preference include: (a) a structured discovery schedule; (b) streamlined procedures to resolve discovery disputes; (c) an expedited briefing schedule for dispositive motions; and (d) regular case management conferences." (Opposition at p. 4.)

The Court GRANTS Plaintiff's motion for trial preference. Trial shall be set for no later than November 12, 2026. This date is calculated as 120

days from July 14, 2026, plus one day for landing on the November 11, 2026 holiday. (See Code Civ. Proc., §§ 12, 12a, 12b.)

The parties are ordered to appear at the hearing (remote appearances permitted) and be prepared to discuss their discovery plan and select Final Status Conference and Trial dates.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 14th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court